

standards as counsel in these proceedings and should act accordingly.

As to the substance of GEICO's arguments, Plaintiff appears to concede that the 4AC is deficient. She notes in her Opposition that with the "insurance contract explicitly in hand, a 5AC will flawlessly cure" all Geico's concerns about the 4AC. (Opp at 4:2-3.) She also clearly states that the "Demurrer can be fully cured in a Fifth Amended Complaint." (Opp. at III B.)

It is accepted that the failure to challenge a contention in a brief results in the concession of that argument. (*DuPont Merck Pharmaceutical Co. v. Superior Court* (2000) 78 Cal.App.4th 562, 566 ["By failing to argue the contrary, plaintiffs concede this issue"]; *Westside Center Associates v. Safeway Stores 23, Inc.* (1996) 42 Cal.App.4th 507, 529 ["failure to address the threshold question ... effectively concedes that issue and renders its remaining arguments moot"]; *Glendale Redevelopment Agency v. Parks* (1993) 18 Cal.App.4th 1409, 1424 [issue is impliedly conceded by failing to address it].) By failing to substantively address Geico's arguments, Plaintiff concedes all the contentions and arguments in the moving papers.

While the Court is not impressed with Plaintiff's actions in these proceedings, especially the meritless claims against counsel for Geico, it is mindful of the fact that Plaintiff only recently obtained the Policy which she claims provides the basis for her claims. The main argument made by Geico throughout these proceedings is that Plaintiff has failed to attach the Policy or identify specific portions thereof that support her claims. Granted Plaintiff should have sought a copy of the Policy long ago. However, now that she has the Policy, as well as the Guarantee which Geico also provided, Plaintiff should be given leave to amend a final time to attempt and properly plead her case.

Generally, leave to amend should be given unless the complaint 'shows on its face that it is incapable of amendment.' (*Tarrar Enterprises, Inc. v. Associated Indemnity Corp.* (2022) 83 Cal.App.5th 685, 688 citation omitted; *Eghtesad v. State Farm General Ins. Co.* (2020) 51 Cal.App.5th 406, 412.) "[I]t is a rare case in which 'a court will be justified in refusing a party leave to amend his pleadings so that he may properly present his case.'" (*Morgan v. Superior Court of Los Angeles County* (1959) 172 Cal.App.2d 527, 530 quoting *Guidery v. Green* (1892) 95 Cal. 630, 633.)

Conclusion

Defendant's demurrer is **SUSTAINED**. Plaintiff is **GRANTED** leave to amend. Plaintiff shall file any amended complaint within 21 days of notice of entry of this order.

4. 9:00 AM CASE NUMBER: C25-00149
CASE NAME: AMIR SAFFARIAN VS. ALI HASSAN
HEARING ON DEMURRER TO: 2ND AMENDED COMPLAINT
FILED BY: ARREAGA, GUILLERMO ARMANDO MARTINEZ
TENTATIVE RULING:

Plaintiffs' Demurrer to the First Amended Cross-Complaint was inadvertently vacated from the calendar. That motion is reset for hearing to **September 21, 2026, at 9:00 a.m. in Department 34**. The Martinez Defendants' Demurrer to the Second Amended Complaint, currently set for July 20, 2026, is **continued** to the same date so both matters may be heard together.

Plaintiffs' counsel shall give notice of this order to all parties.

5. 9:00 AM CASE NUMBER: C25-03125
CASE NAME: JAMES GUIDRY VS. FELICIA PHO
*HEARING ON MOTION IN RE: STRIKE PORTIONS OF PLAINTIFF'S COMPLAINT
FILED BY:
TENTATIVE RULING:

Defendant Felicia Pho's motion to strike punitive damages allegations is **denied**.

Background

This is an action for breach of the implied warranty of habitability and related claims arising from a residential tenancy. The following facts are taken from the allegations of Plaintiff James Guidry's complaint filed on October 24, 2025, which the court accepts as true for purposes of this motion.

Plaintiff resided at 517 Eaker Way in Antioch, pursuant to a written lease agreement between Plaintiff's spouse Patricia Costa and Defendant. (Complaint ¶ 9.) The complaint alleges that at the time of Plaintiff's move-in, the premises were infested with ants and cockroaches, that water leaked from a light fixture in the primary bedroom into the first-floor bathroom, and that the premises had a faulty electrical wiring system causing constant outages. (*Id.* ¶ 15.) Plaintiff alleges he notified Defendant of these conditions, that Defendant responded that Plaintiff would need to pay for repairs himself, and that Plaintiff hired a plumber on multiple occasions to seal the bathtub and toilet without success, for which he was never reimbursed. (*Id.* ¶ 16.) The complaint further alleges that the Housing Authority of the County of Contra Costa inspected the property on May 16, 2024, and that the unit failed the inspection due to multiple habitability issues, after which Defendant served Plaintiff and his family with a sixty-day notice to move out, claiming the need to make repairs but denying relocation assistance. (*Id.* ¶¶ 17-18.) Plaintiff alleges he and his family vacated the premises on May 30, 2024, due to Defendant's alleged harassment. (*Id.* ¶ 19.)

The complaint asserts five causes of action based on these allegations: (1) tortious breach of the implied warranty of habitability under Civil Code sections 1941 et seq.; (2) breach of the covenant of quiet enjoyment under Civil Code section 1927; (3) contractual breach of the implied warranty of habitability under Civil Code section 1941; (4) violation of the Antioch Tenant Protection Ordinance; and (5) constructive eviction based on negligence. The complaint also includes a separate claim for exemplary damages, alleging that Defendant "intentionally violated Plaintiff's rights and retaliated against Plaintiff for enforcing [his] rights as a tenant" (Complaint ¶ 58), and that Defendant's conduct was willful and undertaken in conscious disregard of Plaintiff's rights within the meaning of Civil Code section 3294. (*Id.* ¶ 59, Prayer, C.)

Defendant moves to strike Plaintiff's punitive damages allegations on the ground that the complaint fails to plead facts, as opposed to conclusions, sufficient to establish oppression, fraud, or malice under Civil Code section 3294. Defendant argues that leave to amend should be denied because Plaintiff will not be able to cure the defect.

Plaintiff opposes the motion, arguing that the complaint adequately alleges that Defendant knew of longstanding defective conditions and failed to correct them, and retaliated against Plaintiff and his family by serving a notice to move out shortly after the failed housing inspection. If the court is inclined to grant the motion, Plaintiff requests leave to amend.

Meet and Confer

The motion is supported by the declaration of counsel, Shelly Stuppiello, attesting that the parties met